

1 ENGROSSED SENATE
2 BILL NO. 1450

By: Daniels of the Senate

3 and

4 Hill of the House

5
6 An Act relating to criminal court costs and fees;
7 amending 22 O.S. 2021, Sections 983a and 983b, as
8 amended by Section 2, Chapter 29, O.S.L. 2022 (22
9 O.S. Supp. 2025, Section 983b), which relate to
10 waiver and ability to pay; modifying applicability of
11 certain provisions; requiring waiver of certain costs
12 and fees upon completion of certain requirements;
13 specifying time period for timely payment; requiring
14 substantial compliance of certain requirements;
15 requiring certain waiver; updating statutory
16 language; updating statutory reference; and providing
17 an effective date.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. AMENDATORY 22 O.S. 2021, Section 983a, is
20 amended to read as follows:

21 Section 983a. A. On or after ~~November 1, 2016~~ the effective
22 date of this act, the court shall ~~have the authority to~~ waive all
23 outstanding fines, court costs, and fees in a criminal case for any
24 person who:

1. Served a period of imprisonment in the custody of the
Department of Corrections after conviction for a crime;

2. Has been released from the custody of the Department of
Corrections;

1 3. Has complied with all probation or supervision requirements
2 since being released from the custody of the Department of
3 Corrections; and

4 4. Has made installment payments on outstanding fines, court
5 costs, fees, and restitution ordered by the court on a timely basis
6 every month for the previous twenty-four (24) months following
7 release from the custody of the Department of Corrections, including
8 any payments made prior to the effective date of this act.

9 B. On or after the effective date of this act, upon request by
10 or on behalf of a party, the court shall waive all outstanding
11 fines, court costs, and fees in a criminal case for any person who
12 has made installment payments on outstanding fines, court costs,
13 fees, and restitution ordered by the court on a timely basis for
14 forty-eight (48) months in the previous sixty-month period,
15 including any payments made prior to the effective date of this act.
16 To be eligible for a waiver pursuant to this subsection, the person
17 shall have complied with all probation or supervision requirements
18 as ordered by the court.

19 C. 1. A payment shall be considered to be timely under this
20 section if the payment was made within thirty (30) days of the date
21 the payment originally became due.

22 2. The court shall grant a waiver under subsection A or B of
23 this section if the court finds that the person has substantially
24 complied with the requirements of such subsections.

1 3. For the purposes of this section, a person shall be deemed
2 to have complied with all probation or supervision requirements if
3 the court has not revoked a suspended sentence or accelerated a
4 deferred sentence for the person.

5 D. The provisions of this section shall not apply to amounts
6 owed by the person for restitution to a victim pursuant to a court
7 order or child support obligations pursuant to a court order.

8 E. Waiver under this section shall only be effective upon the
9 entry of a court order.

10 SECTION 2. AMENDATORY 22 O.S. 2021, Section 983b, as
11 amended by Section 2, Chapter 29, O.S.L. 2022 (22 O.S. Supp. 2025,
12 Section 983b), is amended to read as follows:

13 Section 983b. A. Any person released on parole or released
14 without parole from a term of imprisonment with the Department of
15 Corrections shall be required to report at a time not less than one
16 hundred eighty (180) days after his or her release from the
17 Department of Corrections to:

18 1. The district court of the county from which the judgment and
19 sentence resulting in incarceration arose; and

20 2. All other district courts or municipal courts where the
21 person owes fines, fees, costs, and assessments,
22 for the purpose of scheduling a hearing to determine the ability of
23 the person to pay fines, fees, costs, or assessments owed by the
24 person in every felony or misdemeanor criminal case filed in a

1 district court or criminal case filed in a municipal court of this
2 state. Such hearing shall be held in accordance with the provisions
3 of Section VIII of the Rules of the Court of Criminal Appeals, 22
4 O.S. ~~2011~~ 2021, Ch. 18, App. A court may for good cause shown or in
5 its discretion continue such hearing for up to one hundred eighty
6 (180) days.

7 B. In determining the ability of the person to satisfy fines,
8 fees, costs, or assessments owed to a district or municipal court,
9 the court shall inquire of the person at the time of the hearing
10 which counties and municipalities the person owes fines, fees,
11 costs, or assessments in every felony or misdemeanor criminal case
12 filed against the person and shall consider all court-ordered debt,
13 including restitution and child support, in determining the ability
14 of the person to pay. In calculating and determining the ability of
15 a person to pay his or her fines, fees, costs, or assessments under
16 the provisions of this subsection, any monies received from a
17 federal or state government need-based assistance program shall not
18 be counted as personal income to pay for the legal and financial
19 obligations owed to the court. The court may reduce a person's
20 fines, fees, costs, or assessments if it is determined by the court
21 that the person does not have the ability to pay the fines, fees,
22 costs, or assessments. However, if the court determines that a
23 reduction in the fines, fees, costs, or assessments is warranted,
24 the court shall equally apply the same percentage reduction to the

1 fines, fees, costs, or assessments owed by the person. The person
2 shall not be required to pay any outstanding fines, fees, costs, or
3 assessments prior to the expiration of the one-hundred-eighty-day
4 period; provided, however, the person shall not be precluded from
5 voluntarily making payment toward the satisfaction of any fines,
6 fees, costs, or assessments due and owing to a district or municipal
7 court of this state.

8 C. On or after the effective date of this act, upon request by
9 or on behalf of a party, the court shall waive all outstanding
10 district or municipal court fines, costs, fees, and assessments in a
11 criminal case for any person who meets the requirements of Section
12 983a of this title. Waiver under this subsection shall only be
13 effective upon the entry of a court order.

14 D. The Court of Criminal Appeals shall promulgate rules
15 governing the provisions of this section including, but not limited
16 to:

17 1. Reporting, hearing, and payment requirements as provided for
18 in subsections A and B of this section;

19 2. Consolidating district and municipal court fines, fees,
20 costs, or assessments owed by a person into one order for payment;
21 and

22 3. Accepting and distributing payments received for fines,
23 fees, costs, or assessments to various district and municipal courts
24 when consolidated by the court into one order for payment.

SECTION 3. This act shall become effective November 1, 2026.

Passed the Senate the 17th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives